

Court No. - 39

Case :- WRIT - C No. - 45438 of 2015

Petitioner :- M/S Silverton Pulp And Papers Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And
Another

Counsel for Petitioner :- Mayank Agarwal

Counsel for Respondent :- A.K. Saxena

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

Learned counsel for the petitioner and Shri A.K.Saxena, learned counsel for the respondents have stated that the controversy involved in this petition is similar to that involved in Writ Petition No. 18855 of 2008 in which an interim order was passed, a copy of which has been annexed to this petition.

In view of the aforesaid statement connect this petition with Writ Petition No. 18855 of 2008 and list on the date fixed.

The petitioner applied for sanction of additional load of 500 KVA. The respondents have put a condition that the bank guarantee is to be deposited equivalent to the amount due against the petitioner which has been stayed by this Court in writ petition no.25603 of 2007, otherwise the additional load cannot be released to the petitioners in view of para 4.49, of the U.P. Electricity Supply Code 05.

We are of the opinion that since in the writ petition the amount has been stayed and writ petition is subjudice, the respondents cannot insist on furnishing of Bank guarantee equivalent to the amount due in the aforesaid writ petition and on this ground alone cannot refuse to release the additional load to the petitioner. We therefore direct the respondents to release the additional load of 500 KVA to the petitioner without insisting for bank guarantee equivalent to the amount due in the aforesaid writ petition, which have already been stayed by this Court. However, other charges shall be paid by the petitioner to the respondents.

Order Date :- 17.8.2015

Arshad

(Vinod Kumar Misra,J.) (Dilip Gupta,J.)

Chief Justice's Court

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Counsel for Respondent :- A.K. Saxena,S.C.

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)